



EXCLUSIVE RIGHT TO SELL
UNIMPROVED LAND BROKERAGE AGREEMENT

DATE: _____

1. SELLER(S) (List all): _____

Mailing Address : _____

Office Telephones: _____ Office/Home Fax: _____

Home Telephones: _____ Cell Phones: _____

Email Addresses: _____

2. BROKER: _____

Office Address: _____

Office Telephone: _____ Office Fax: _____

Listing Agent: _____ Direct Line: _____

Home Phone: _____ Cell Phone: _____

Email Address: _____

3. PROPERTY LISTING: _____ ("Broker") is

hereby authorized by the undersigned ("Seller(s)") or by the authorized representative of Seller(s) to sell, as the exclusive real estate broker, the ("Property") described as follows:

Lot _____, Block _____, Liber _____ Folio _____

Plat Book _____, Plat No. _____, Section _____

Grid _____, Parcel No. _____, Subdivision _____

(known as) Address _____

City _____, County _____

Maryland Zip Code _____, Tax Acct. No. _____, Tax Map _____

No. Acres _____, Zoned _____ Current Use _____

Approx. No. of Sq. Ft. _____. Seller acknowledges that the Property is being conveyed (initial one selection) ☐ ☐ N FEE SIMPLE, or ☐ ☐ SUBJECT TO AN ANNUAL GROUND RENT, now existing, in the amount of \$ _____, payable semi-annually.

4. AGREEMENT TERM/RIGHTS OF PARTIES FOLLOWING EXPIRATION OR TERMINATION OF AGREEMENT: This agreement shall _____ (mm/dd/yyyy) and shall continue until 11:59:59 p.m. on _____ (mm/dd/yyyy), (the "Agreement Term") unless terminated in accordance with the provisions of this section. Pursuant to Maryland Code, Real Property, Section 14-903, the Agreement Term may not be longer than a year in duration.

As required under Section 17-534(b)(5) of the Maryland Real Estate Brokers Act, the parties agree to the following provision for the termination of this Agreement (**Broker to insert terms of termination**):

An expiration or termination of this Agreement by Seller or Broker shall be subject to the provisions of Paragraph 11 of this Agreement, and Paragraph 11 of this Agreement shall survive the expiration or termination of this Agreement. Notwithstanding the rights of the parties to terminate this Agreement as provided herein, Broker, in Broker's sole and absolute discretion, may terminate this Agreement at any time and effective immediately in the event Seller provides any false information, misrepresents any fact to Broker or other third-party, or violates

or indicates any intention to discriminate in violation of any applicable federal, state or local fair housing law(s). If a Contract of Sale is entered into by Seller during the Agreement Term, which provides for settlement to occur after the expiration of the Agreement Term, this Agreement shall be automatically extended until settlement has occurred or until the Contract of Sale is released in writing by the parties, but in no event shall the Agreement Term, including any extension, extend beyond one year in duration.

5. LISTING PRICE: The listing price of the Property is \$_____ and shall be the price advertised by Broker. If Seller desires to change the listing price, Seller shall immediately inform Broker in writing of the changed listing price, and such changed listing price shall thereafter be the price advertised by Broker. The price includes all encumbrances, balances owing on equipment, brokerage fees, taxes and assessments (except for connection charges and front foot benefits assessments levied for sewer and water installations, if any, if they are to be assumed by buyer). Seller acknowledges that Seller must discharge all liens, including but not limited to: existing deeds of trust, mechanic's liens and tax judgment liens, at the time of settlement. All items of personal property or fixtures, if any, which convey are included in the sale price and shall be transferred free of liens. In the event the proceeds of sale are insufficient to cover Seller's obligation, Seller will provide sufficient cash to discharge all liens and to pay Broker's fees.

6. SHOWING INSTRUCTIONS:

7. MARKETING/MLS/INTERNET ADVERTISEMENT:

(a) Broker is authorized to and shall market the Property including, but not limited to, entering the Property into the applicable multiple listing service(s) ("MLS"), installing a sign, photographing the Property and installing a lock box. Seller acknowledges that Broker is bound by the bylaws, policies and procedures, and rules and regulations governing the MLS and the lock box system Seller. Broker is hereby granted the right to report to the MLS for dissemination, in accordance with the MLS rules and policies, any contract of sale and sales price (including the other terms upon which any sale of the Property is made). Except as otherwise provided in paragraphs (b), (c), (d), and (e) below and in accordance with the directions therein, Broker, upon election by Broker and in Broker's sole and absolute discretion, is hereby authorized by Seller to submit and market the Property (including street name and house number) by and through:

1. Broker's internet website;
2. The Internet websites of licensed real estate salespersons or associate real estate brokers affiliated with Broker;
3. Any other Internet website in accordance with applicable MLS rules and regulations;
4. Print media; and/or
5. Any available MLS Program(s) that enable participants to display aggregated MLS active listing information on participants' public websites. Seller further consents to and authorizes Broker, in accordance with the MLS rules and regulations, to allow other MLS participants and authorized users to market the Property by and through the internet website of other such MLS participants and authorized users.

(b) OFFICE EXCLUSIVE:

Seller may elect not to have the Property listing distributed on the MLS at all. (Seller to initial if Seller does not authorize Broker to distribute Property listing on the MLS at all):

☐ ☐ Broker may *not* market the Property by and through distribution on the MLS during the listing period.

Seller hereby acknowledges that, having selected not to distribute the Property listing on the MLS at all:

(1) real estate licensees from other companies and their buyer clients who have access to the MLS may not be aware that Seller's Property is for sale and the terms and conditions under which Seller is marketing the Property;
(2) Seller's Property will not be included in the MLS's download to various real estate internet sites that are used by the public to search for property listings; and (3) any reduction in the exposure of the Property may lower the number of offers made and negatively impact the sales price. (Seller to initial): ☐ ☐

(c) Seller may elect not to have the Property listing or the Property address displayed on the internet.

Seller hereby directs Broker that (Seller to initial all that apply):

☐ ☐ Broker may *not* submit and market the Property by and through display on any internet website.

☐ ☐ Broker may submit and market the Property by and through display on any internet website, but Seller elects *not* to permit display of the Property address on any internet website.

Seller hereby acknowledges that, having selected either or both of the above option(s) not to allow information on internet websites, a consumer who conducts searches for listings on the internet will not see the corresponding information about the Property in response to a search. (Seller to initial): ☐ ☐

(d) Certain features may be displayed on the websites of MLS participants, including:

- (1) Unedited comments or reviews of the Property (or display a hyperlink to such comments or reviews); or
- (2) An automated estimate of the market value of the Property (or a hyperlink to such estimate).

(Seller to initial):

Seller ☐ ☐ authorizes or ☐ ☐ does not authorize the display of unedited comments or reviews of the Property (or display a hyperlink to such comments or reviews) on MLS participants' websites.

Seller ☐ ☐ authorizes or ☐ ☐ does not authorize the display of an automated estimate of the market value of the Property (or a hyperlink to such estimate) on MLS participants' websites.

During the term of this agreement, Seller, by written request to Broker, may authorize Broker to enable or disable use of either feature as described in (1) or (2) above. Broker agrees to transmit promptly the request to the MLS.

(e) COMING SOON LISTING STATUS: The "Coming Soon" listing status is an option for properties listed in the MLS that are not available but will be in the future. Sellers who choose this option must have executed a listing agreement. Listings under the "Coming Soon" status are given a MLS number. All MLS subscribers may view listings under this status. However, properties listed under the "Coming Soon" status may not be shown.

Seller, by Seller's initials, authorizes Broker to list the Property under the "Coming Soon" listing status in the MLS. (Seller initials): ☐ ☐ ☐ ☐

Broker's responsibility to market the Property is suspended upon Seller's acceptance of a written offer to purchase the Property, unless otherwise agreed by Broker.

(f) SELLER CONCESSIONS ON THE MLS: Concessions in the MLS may not be limited to or conditioned on the retention of or payment to a cooperating/buyer broker: they are subject to negotiation between a buyer and seller. Bright has a zero-tolerance policy for misuse of these fields.

Does the seller want to signal they will consider offers requesting concessions/credits towards a buyer's closing costs and service providers?

☐ YES

☐ NO

Seller acknowledges that Seller has read and understands the provisions of Paragraph 7(f).

(Seller initials): ☐ ☐

8. GRANT/RELEASE OF PROPERTY DATA TO BROKER: Seller grants to Broker the unlimited right to use, publish, disseminate, sell, and license to others all text, graphics, photos, virtual tours, documents, and any other types of data entered into the multiple list system, and Seller hereby releases to Broker all of the Seller's interests and all intellectual property rights therein. Seller understands and agrees that public websites determine their own content and use of data, and therefore Broker has no control over public websites and no obligation to remove any of the above content from public websites at any time.

9. FAIR HOUSING: With respect to race, color, religion, sex, national origin, handicap or familial status, the Property is offered in compliance with the Civil Rights Act of 1968, and the Fair Housing Amendments Act under Federal law. Additionally, the Property shall be offered in compliance with the anti-discrimination provisions of Maryland law and any local, county and municipal fair housing laws.

10. SELLER RESPONSIBILITY: Broker shall not be responsible for the care, or physical condition of the Property. Seller shall remain solely responsible for the care and physical condition of the Property, including, but not limited to, cost of all utilities, maintenance state commission rates are not fixed by law or, the physical security of the premises and all personal property and maintaining adequate property and personal injury insurance during the term of this Agreement; and, Broker shall have no liability for such matters.

11. BROKER'S COMPENSATION:

NOTICE: Real estate commission rates are not fixed by law or established by any membership organization with which Broker is affiliated. Each real estate brokerage independently sets their own commission rates. Commission rates are negotiable between the Seller and Broker.

In the event of a sale, exchange, or transfer, the Compensation to be paid by Seller to Broker shall be (Select only one):

☐	_____ percent (%) of the sales price.
☐	_____ percent (%) of the sales price AND \$_____.
☐	\$_____.

The Compensation shall be deemed to have been earned by Broker and shall be due and payable by Seller to Broker if:

A. During the term of this Agreement, or any extension thereof:

(i) Broker produces a ready, willing and able buyer to purchase the Property at the listing price and/or at such other price as shall be accepted by Seller or agreed upon in writing between Seller and Broker (the "Sale Price"); or

(ii) Seller shall enter into a written agreement to sell, exchange, convey or transfer the Property to any person or entity whether such person or entity shall have been procured by Broker, by Seller or by any other person or entity, in which event Seller, within seventy-two (72) hours thereof, shall furnish Broker a copy of such written agreement; or

(iii) if during the period of _____ days following the expiration or termination of this Agreement, Seller shall enter into a written agreement to sell, lease, exchange, convey or transfer the Property to any person who or to any entity which, with knowledge of Seller or any agent of Seller, inspected or made inquiry about the Property or negotiated to purchase or exchange the Property during the term of this Agreement or any extension thereof, in which event Seller, within seventy-two (72) hours thereof, shall furnish Broker a copy of such written agreement;

B. Seller defaults or voluntarily agrees to terminate a sale; or

C. Seller breaches this Agreement.

The Compensation due Broker shall be a charge against the Property and shall be paid at settlement as a convenience to Seller. However, Seller acknowledges and agrees that settlement on the Property shall not be a condition precedent to Seller's obligation to Broker as herein provided.

If Broker prevails in any action brought to obtain payment of the Compensation, Broker shall also be entitled to recover in such action Broker's reasonable attorney's fees and court costs.

If a deposit made on any contract of sale or other transfer of the Property is forfeited to Seller, or if all or part of the deposit is received by Seller as a settlement made by and between Seller and buyer, \$ _____ or _____ % of the amount forfeited or received as settlement shall be paid to Broker for Broker's services, but in no event shall the amount exceed an amount equal to the full Compensation specified herein.

Seller shall have no obligation to pay the Compensation to Broker if the Property is listed by any other licensed real estate broker following the expiration of this Agreement, or any extension thereof, or following the termination of this Agreement as herein provided, unless such termination by Seller is for the purpose of avoiding the obligation of Seller to pay the Compensation to Broker.

Seller acknowledges that Seller has read and understands the provisions of Paragraph 11.

(Seller to initial): /

12. AUTHORITY TO COOPERATE WITH AND COMPENSATE OTHER BROKERS: Broker is authorized to cooperate with other brokers as subagents of Broker ("Subagents") and/or brokers retained by prospective buyers to represent buyer's interests ("Buyer Brokers"). In this paragraph, "cooperate" means sharing information on the Property and making the Property available to other brokers for showing to prospective purchasers. Seller consents to Broker's cooperation with and compensation of Subagents or Buyer Brokers.

Broker shall pay to any Subagent who has earned and is entitled to compensation, \$ _____ or _____ % of the Sales Price, plus _____ () month(s) ground rent, if any.

Broker shall pay to any Buyer Broker who has earned and is entitled to compensation \$ _____ or _____ % of the Sales Price, plus _____ () month(s) ground rent, if any.

Seller understands that compensating Subagents or Buyer Brokers is optional.

Seller acknowledges that Seller has read and understands the provisions of Paragraph 12.

(Seller to initial): /

13. MINISTERIAL ACTS: Seller hereby consents to and authorizes Broker and Broker's agents, whether acting as subagents or Buyer's Agents, to provide ministerial acts as defined by law on behalf of Seller to third persons in connection with the sale of the Property.

14. DEPOSIT HELD BY ESCROW AGENT: Seller is advised that an escrow agent, other than a Maryland licensed real estate broker, is not subject to the same legal requirements that Maryland licensed real estate brokers are under the Maryland Real Estate Brokers Act concerning the holding and the release of deposit monies. If the deposit is going to be held by a third party other than by a Maryland licensed real estate broker involved in the transaction, the parties are required to enter into a separate written escrow agreement, binding upon the parties and the escrow agent that complies with Section 10-802 of the Real Property Article, Annotated Code of Maryland and § 10-803 of the Real Property Article, Annotated Code of Maryland .

15. NOTICE REGARDING DISCLOSURE OF DEFERRED WATER AND SEWER ASSESSMENTS: Pursuant to Section 14-117(a)(5) of the Real Property Article of the Annotated Code of Maryland, a contract for the resale of residential real property that is served by public water or wastewater facilities for which deferred water and sewer charges have been established by a recorded covenant or declaration shall contain a notice disclosing information about the deferred water and sewer charges. **If a Seller subject to this law fails to comply:**

- (a) **Prior to settlement, Buyer is entitled to rescind in writing the sales contract without penalty or liability. On rescission, Buyer is also entitled to the full return of any deposits made on account of the sales contract. If any deposits are held in trust by a licensed real estate broker, the return of the deposits to a Buyer under this law shall comply with the procedures under § 17-505 of the Business Occupations and Professions Article of the Annotated Code of Maryland. Buyer's right of rescission shall terminate five days after Seller provides to Buyer written notice in accordance with this requirement; and**
- (b) **After settlement, Seller shall be liable to Buyer for the full amount of any fee or assessment not disclosed, unless Seller was never charged a fee or assessment to defray the costs of public water or wastewater facilities by the developer, a successor of the developer, or a subsequent assignee.**

This law does *not* apply in a county that has adopted a disclosure requirement that is substantially similar to this law. (If the Property is served by public water or wastewater facilities for which deferred water and sewer charges have been established by a recorded covenant or declaration, Seller to complete Notice Regarding Deferred Water and Sewer Charges.)

Seller acknowledges that the Property is (*Seller to initial one*) ☐/ ☐ **OR** is not ☐/ ☐ served by public water or wastewater facilities for which deferred water and sewer charges have been established by a recorded covenant or declaration.

16. OFFERS:

A. AUTHORITY TO DISCLOSE EXISTING OFFERS: Seller is advised that prospective buyers or cooperating Brokers may inquire of Broker or Broker's Agents as to whether existing written offer(s) have been received for the purchase of the Property. The disclosure of the existence of written offer(s) could be either beneficial or detrimental to Seller. On the one hand, such disclosure could result in the interested buyer making the highest and best offer as promptly as possible. On the other hand, such disclosure could result in the interested buyer electing not to make an offer.

Seller: (*Seller to initial one*): ☐/ ☐ Authorizes; **OR** ☐/ ☐ Does Not Authorize

Broker or Broker's agents to disclose the existence of other written offers on the Property in response to inquiries from buyers or cooperating brokers. If disclosure is authorized, Broker or Broker's agents shall also disclose, if asked, whether an offer was obtained by the listing agent, another agent in Broker's firm, or by a cooperating broker. Such authority does not include the disclosure of the terms and conditions of such offer(s).

B. PRESENTATION OF OFFERS: Broker shall present to Seller in a timely manner all written offers and counter-offers, even if the Property is subject to an existing Contract of Sale unless Seller has waived the obligation in writing.

17. HOMEOWNERS ASSOCIATION: Seller represents that the Property ☐ is OR ☐ is not a part of a development having mandatory membership in a Homeowners Association. Seller shall obtain and is responsible for the cost of providing prospective buyers with current disclosure documents as prescribed by law. Mandatory HOA fee is \$_____ per _____.

18. AGRICULTURAL LAND TRANSFER TAX/AGRICULTURALLY ASSESSED PROPERTY: The Property, or any portion thereof, may be subject to an "Agricultural Land Transfer Tax" as imposed by Sec. 13-301 et seq., of the Tax Property Article of the Annotated Code of Maryland, by reason of the Property having been assessed on the basis of agricultural use. The additional tax shall be paid by:

_____, Buyer; _____, Seller; _____, Negotiable.

19. FOREST CONSERVATION AND MANAGEMENT PROGRAM: This transfer may be subject to the Forest Conservation and Management Program provision of the Tax Property Article of the Annotated Code of Maryland. Any tax assessed due to this transfer shall be paid by:
_____Buyer; _____Seller; _____Negotiable

20. CONSERVATION EASEMENTS:

- A. Seller is advised and acknowledges that if the Property is encumbered by one or more Conservation Easements or other restrictions limiting or affecting uses of the Property, Maryland law requires that Seller deliver to the Buyer the required notice and copies of the easement(s). A buyer who does not receive the notice and copies of the easement(s) on or before entering into the contract for sale has the unconditional right upon written notice to the Seller or Seller's agent, to rescind the Contract of Sale at any time before the receipt of the notice and copies of the easement(s) or within five (5) days following receipt of the notice and copies of the easement(s) and to the immediate return of any deposit.
- B. Seller hereby represents to Broker, and upon which representation Broker is entitled to rely; that: (*Seller to initial one*):
- | | | |
|--------------------------|--------------------------|--|
| ☐ | ☐ | 1. The Property IS NOT subject to one or more Conservation Easement(s) or other restrictions limiting or affecting uses of the Property; OR |
| ☐ | ☐ | 2. The Property IS subject to one or more Conservation Easement(s) or other restrictions limiting or affecting uses of the Property, as follows: (<i>Seller to check applicable Conservation Easement(s)</i>) |
- ☐ Maryland Environmental Trust
 - ☐ Maryland Historical Trust
 - ☐ Maryland Agricultural Land Preservation Trust
 - ☐ Maryland Department of Natural Resources
 - ☐ A County or Municipal Corporation, funded by the Maryland Department of Natural Resources, the Rural Legacy Program, or a local Agricultural Preservation Program
 - ☐ Land Trust
 - ☐ Required by a permit issued by the Department of the Environment

If paragraph B.2. is initialed by Seller, Seller ☐ has **OR** ☐ has not (check one) provided a copy of the Conservation Easement(s) to Broker, and Seller acknowledges that it is Seller's sole obligation to obtain and deliver copies of the Conservation Easement(s) to Buyer.

21. EXISTING LEASES: Transfer of this Property is subject to the following Lease(s):

22. ROAD MAINTENANCE AGREEMENT: This Property ☐ is OR ☐ is not subject to a written Road Maintenance Agreement. If the Property is subject to a written Road Maintenance Agreement, Seller shall provide a copy of same to Broker within five (5) business days of the effective date of this Agreement.

23. BUILDING PERMITS/ENGINEERING WORK: Seller represents that a Building Permit ☐ has OR ☐ has not been issued by the appropriate County officials. If a Building Permit has been issued, Seller shall provide a copy of any building plans to Broker within five (5) days of the effective date of this Agreement. Seller further represents that the following companies have undertaken engineering and/or development work on the Property:

24. INSURABILITY: Seller acknowledges that Seller is solely responsible to inquire about obtaining insurance coverage for the Property.

25. FLOOD DISCLOSURE NOTICE: Seller is advised that the Property or part of the Property may be located in an area established by the government as a "flood plain" or otherwise in an area where flood insurance could be required. The National Flood Insurance Program ("NFIP") establishes flood insurance policy premiums based on the risk of flooding in the area where properties are located. Due to amendments to federal law governing the NFIP, those premiums are increasing, and in some cases will rise by a substantial amount over the premiums previously charged for flood insurance. As a result, premiums paid for flood insurance on the Property may not be indicative of premiums that will apply after the Property is purchased. Also, the State of Maryland in conjunction with the Federal Emergency Management Agency has been systematically updating flood insurance rate maps. The Property may be affected.

26. SELLER REPRESENTATIONS:

Water Supply:	☐ Public	☐ Private Well	☐ Shared Well	☐ Other: _____
Plat:	☐ Recorded	☐ Preliminary	☐ Topographical	☐ None
Sewage Disposal:	☐ Public	☐ Septic	☐ Mound System Required	☐ Lift/Pump Required
Percolation:	☐ Approved	☐ Recorded	☐ Designated Septic Area	☐ Permit Issued
	☐ Percolation Information Unknown			

27. MARYLAND NON-RESIDENT SELLER: Seller acknowledges, pursuant to Section 10-912 of the Tax-General Article, Annotated Code of Maryland, that if Seller is: 1) a non-resident individual of the State of Maryland or is 2) a non-resident entity which is not formed under the laws of the State of Maryland and is not qualified by or registered with the Maryland State Department of Assessments and Taxation to do business in the State of Maryland, the deed or other instrument of writing that effects a change of ownership to the Property may not be recorded with the clerk of the court for a county or filed with the Maryland State Department of Assessments and Taxation unless payment is first made by the Seller in an amount equal to:

- a) 8.75% of the total payment to a non-resident Seller; **OR**
- b) 8.25% of the total payment to a non-resident entity;

(NOTE: The amount of the payment for a non-resident individual is subject to adjustment on a recurring basis by the Comptroller of Maryland. The amount of the payment for a non-resident entity is subject, from time to time, to change by an Act of the Maryland General Assembly. Seller acknowledges that the amount(s) as set forth in a) and b) above may be greater or lesser than the actual amount(s) due by Seller at time of settlement.)

UNLESS each Seller:

1. Certifies, in writing, under the penalties of perjury, that the Seller is a resident of the State of Maryland or is a resident entity of the State of Maryland; **OR**
2. Presents to the clerk of the circuit court for a county or the Maryland State Department of Assessments and Taxation a certificate issued by the Comptroller of the State of Maryland stating that: i) there is no tax due in connection with the sale or exchange of the Property; or ii) a reduced amount of tax is due from the Seller and the reduced amount is collected by the clerk of the circuit court for a county or the Maryland Department of Assessments and Taxation before recording or filing; **(NOTE: If Seller intends to obtain a certificate from the Comptroller's office, Seller should immediately contact the Comptroller at 1-800-MDTAXES. Obtaining the certificate requires a MINIMUM of three (3) weeks); OR**
3. Has satisfied the tax liability or has provided adequate security to cover such liability; **OR**
4. Certifies, in writing, under the penalties of perjury, that the Property being transferred is the Seller's principal residence.

As defined under Maryland law and as used in a) and b) above, the term "total payment" means the net proceeds paid to the Seller for the Property and associated tangible personal property, less: 1) debts owed by the Seller and secured by a mortgage or other lien against the Property being paid upon the sale or exchange of the Property and 2) other expenses of the Seller arising out of the sale or exchange of the Property and disclosed on a settlement statement prepared in connection with the sale or exchange of the Property. "Total payment" includes the fair market value of any property transferred to the Seller.

28. FOREIGN INVESTMENT TAXES – FIRPTA (Foreign Investment in Real Property Tax Act): Section 1445 of the United States Internal Revenue Code of 1986 and applicable Treasury Department regulations adopted thereunder (the “Act”) provide that a buyer of residential real property located in the United States must withhold federal income taxes from the payment of the purchase price under certain circumstances. Seller agrees to comply with the Internal Revenue Service reporting requirements. If applicable, Seller agrees to complete, sign, and deliver to the appropriate party a certificate indicating whether Seller is a foreign person or non-resident alien under the Act.

29. WIRE FRAUD NOTICE: Seller is advised to never trust wiring instructions sent via email. Cyber criminals are hacking email accounts and sending emails with fake wiring instructions. These emails are convincing and sophisticated. Seller should always independently confirm wiring instructions in person or via a telephone call to a trusted and verified phone number. Seller should never wire money without double-checking that the wiring instructions are correct.

30. LEGAL CONSTRUCTION: This Agreement is binding upon the parties hereto, and their personal representatives, successors, heirs and assigns. If this Agreement is signed by more than one person, it shall constitute the joint and several obligations of each. This Agreement contains the entire Agreement of the parties and cannot be changed except by the written agreement of the parties hereto. Seller warrants that there are no other existing agreements or conditions other than as set forth herein. This is a legally binding Agreement; if not understood, seek competent legal, tax or other professional advice. Seller has not relied upon any statement or representation of Broker except as set forth in this Agreement. This Agreement shall survive execution and delivery of the deed and shall not be merged therein. This Agreement shall be interpreted and construed in accordance with the laws of the State of Maryland.

31. HAZARDOUS WASTE: Seller represents and warrants that to Seller's knowledge, the Property has not, at any time, been used as a dump, nor to Seller's knowledge does it contain any hazardous waste. Seller shall not allow any waste to be placed on the Property prior to settlement.

32. ADDENDA: The Addenda marked below, which are hereby attached, are made a part of this Agreement.

- | | |
|---|---|
| ☐ Consent for Dual Agency | ☐ Maryland Non-Resident Seller Transfer Withholding Tax Addendum |
| ☐ Federal Lead-Based Paint Disclosure | ☐ Notice & Disclosure of Deferred Water & Sewer Charges |
| ☐ Financial Condition of Property Disclosure | |

Other Addenda/Special Conditions:

RECEIPT OF COPY: Seller acknowledges receipt of a copy of this Agreement at time of signing hereof.

Seller Date

Seller Date

Broker (Company Name)

Broker or Authorized Representative Date